

NDOLA CITY COUNCIL

MINUTES OF THE PROCEEDINGS OF THE MEETING OF LEGAL SERVICES AND ADMINISTRATION COMMITTEE HELD IN THE COUNCIL CHAMBER, CIVIC CENTRE, INDEPENDENCE WAY ON TUESDAY, 1ST OCTOBER, 2024 AT 15:10 HOURS.

PRESENT

MEMBER	DESIGNATION	WARD
Councillor James Banda	<i>Chairperson</i>	Kafubu
Councillor Ivo Chisanga	Member	Kanini
Councillor Fewdays Lumbwe	Member	Kanyanje
Councillor Francis Kazembe	Member	Mukuba
Councilor Andronicus P Ngulube	Member	Masala
Councillor Bester Chibwe	Member	Pamodzi
The Deputy Mayor Councillor Luckson Chisenga (Ex-Officio)		Mapalo

ABSENT WITH APOLOGY

Councilor Emmanuel Mulenga	Member	Lupili
His Worship the Mayor Jones Kalyati (Ex-Officio)		Ndola

PRESENT BY INVITATION

	WARD
Councillor Florence Mwambazi	Kaloko
Councillor Edgar Misenso	Chichele
Councillor Rhoda Chinene	Yengwe
Councillor Ntambo Kabwebwe	Twapia
Councillor Cindy Kaluba	Mushili

IN ATTENDANCE

DESIGNATION	NAME
Director of Human Resource and Administration	Ms. Chembe Chishimba
Director of Legal Services	Mr. Richard Mwiinga
Assistant Director of Public Health	Mr. Evans Chiinza
Assistant Director of Finance	Mr. Shem Samalela
Director Planning	Mr. Pasquill S Kakula
Assistant Director of Planning – Forward Planning	Ms. Kasasa K Mulenga
Assistant Director of Engineering Services	Ms. Mulenga C Nkolola
Council Advocate	Ms. Bwalya K Makina
Chief Internal Auditor	Mr. Cosmas Chizu
Public Relations Officer	Ms. Rebecca Mushota
Information Technology Manager	Mr. Simon Shanyinde
Legal Officer	Ms. Kalaba Zulu
Chief Community Development Officer	Ms. Peggy H M. Chungu
Chief Committee Clerk	Mr. Kondwani Masebo

Chief Administrative Officer
Chief Human Resource Officer
Environmental Planner
Internal Auditor
Senior Legal Assistant
Senior Legal Assistant
Senior Legal Assistant
Senior Legal Assistant
Committee Clerk
Assistant Committee Clerk

Mr. Flemming Kaango
Mr. Trasil Mwape
Mr. Lovemore Tembo
Ms. Brenda Lupiya
Ms. Hellen Fara
Ms. Rita K Mokola
Ms. Tikambenji Banda
Ms. Samba Chinyama
Ms. Mwelwa Musenga
Mr. Emmanuel Makulika

OPENING PRAYER

Prior to the commencement of the meeting, a prayer was given by the Assistant Director of Finance Mr. Shem Samalela.

DECLARATION OF INTEREST

Councillor Andronicus P. Ngulube declared interest on minute number LSA/171/10/2024.

NOTICE OF MEETING

The notice convening the meeting was read by the Director of Human Resource and Administration.

CHAIRPERSONS OPENING REMARKS

In His opening remarks, the Chairperson welcomed all members of the Committee to the meeting and encouraged member to deliberate freely. He was impressed with time keeping by the members of the Committee and urged them to take the meeting seriously when deliberating on matters which were presented to the Committee.

Having made the above remarks, he declared the meeting officially open.

REPORT OF THE DIRECTOR OF LEGAL SERVICES

LSA/165/10/2024

ACTION TAKEN REPORT ON THE MINUTES OF THE LEGAL SERVICES AND ADMINISTRATION COMMITTEE MEETING ADOPTED BY COUNCIL ON FRIDAY, 28TH JUNE, 2024 AT 14:30 HOURS

The Director of Legal Services reported to the Committee that the following were the actions taken on the resolutions of the Legal Services and Administration Committee meeting which were adopted by the Council on Friday, 28th June, 2024 at 14:30 hours.

MINUTE NUMBER	SUBJECT	RESOLUTION	ACTION TAKEN	ACTION TAKEN BY
LSA/143/06/2024	APPLICANTS AWAITING ISSUANCE OF OFFER LETTERS	That the applicants be issued with offer letters. However, Pine Grooves and Kaloko areas to be put on hold with regard to processing of title as they were rejected in the previous meeting under Minute No.LSA/143/06/2024	20 offer letters had been processed except for those areas which were disapproved in the committee meeting. They would be on hold until a tour was conducted and verification was done.	THE DIRECTOR LEGAL SERVICES
LSA/144/06/2024	APPLICATION FOR RATIFICATION	That the applicants stated in the table who had paid the requisite fees and were awaiting issuance of recommendations letters be ratified apart from areas like Pine Groove and Kaloko which are currently on hold.	12 offer letters and 15 recommendation letters had been processed thus far	THE DIRECTOR OF LEGAL SERVICES
LSA/145/06/2024	APPLICATION FOR REGULARIZATION	That the applicants stated in the table who had developed their properties and were seeking documentation from the Local Authority be approved subject to payment of approved charges	9 recommendation letters for Regularization in various areas had been processed as approved under this minute.	THE DIRECTOR OF LEGAL SERVICES

The Committee **Noted** the report.

**LSA/166/10/2024 APPLICATION FOR RATIFICATION FOR CHANGE OF
RECOMMENDATIONS REGARDING KANIKI COMMERCIAL
STANDS AND SOME HIGH-COST PLOTS IN ITAWA, HILLCREST,
MINSUNDU AND MITENGO**

It was reported by the Director of Legal Services that Council, under **Minute No. LSA/159/06/2024**, deferred the ratification for change of recommendations regarding the Kaniki Commercial Stands so that pending applications could also be included. Some of the approved applicants had

applied through the office of the Town Clerk for change of recommendation from their names to other names. Furthermore, there were 3 other applicants that had also applied for the same in Itawa, Hillcrest, Minsundu and Mitengo in respect of High Cost residential. All the said applicants had made the requisite payments to the Council and some recommendations to Ministry of Lands had already been processed while some were yet to. The Acting Director of Legal Services was seeking the Committee's ratification of those applicants into new names.

Details of the applicants previously approved and recommended and those yet to be recommended were as tabulated hereunder:

S/N	APPLICANT PREVIOUSLY RECOMMENDED	MINUTE NUMBER	CURRENT RECOMMENDED APPLICANT	STAND NUMBER	LOCATION	PLOT TYPE	AMOUNT PAID
1	DENNIS KAIME	SPC/179/02/2024	ZUBE GENERAL DEALERS	S/NDOLA/ZLN-1040/37	KANIKI	COMMERCIAL HIGH COST	60, 000.00
2	CHIMUKA MALALA	SPC/179/02/2024	ZUBE GENERAL DEALERS	S/NDOLA/ZLN-1040/38	KANIKI	COMMERCIAL HIGH COST	60, 000.00
3	KAREN MULUBWA	SPC/179/02/2024	POSEIDON INVESTMENTS LIMITED	S/NDOLA/ZLN-197/22	KANIKI	COMMERCIAL HIGH COST	60, 000.00
4	MELODY NUNGA	SPC/179/02/2024	ANNETTE LONGWANI	S/NDOLA/ZLN-197/81	KANIKI	COMMERCIAL MEDIUM COST	30, 000.00
5	MWEEMBA MASOMPE	SPC/179/02/2024	SADCO INVESTMENTS LIMITED	S/NDOLA/ZLN-197/08	KANIKI	COMMERCIAL HIGH COST	60, 000.00
6	LISWANISO KABWELA	SPC/179/02/2024	POSEIDON INVESTMENTS LIMITED	S/NDOLA/ZLN-197/20	KANIKI	COMMERCIAL HIGH COST	60, 000.00
7	BEAUTY CHANDA	SPC/179/02/2024	SADCO INVESTMENTS LIMITED	S/NDOLA/ZLN-197/07	KANIKI	COMMERCIAL HIGH COST	60, 000.00
8	HAPPY CHAILA	SPC/179/02/2024	POSEIDON INVESTMENTS LIMITED	S/NDOLA/ZLN-197/21	KANIKI	COMMERCIAL HIGH COST	60, 000.00
9	RABECCA MWANGO	SPC/179/02/2024	SOHAN MOTORS & GENERAL TRADING	S/NDOLA/ZLN-1040/18	KANIKI	COMMERCIAL HIGH COST	60, 000.00
10	STEVEN SIKOBELA	SPC/179/02/2024	CHRISTOPHER LUNGU	S/NDOLA/ZLN1 97/70	KANIKI	COMMERCIAL HIGH COST	60, 000.00
11	PAUL TEMBO	SPC/179/02/2024	MAESTRIA INVESTMENTS LIMITED	S/NDOLA/ZLN-197/49	KANIKI	COMMERCIAL MEDIUM COST	30,000.00

12	RICHARD C. CHILUFYA	SPC/179/02/2024	MAESTRIA INVESTMENTS LIMITED	S/NDOLA/ZLN-197/47	KANIKI	COMMERCIAL HIGH COST	60,000.00
13	CLEOPATRA MUKONTA	Offer subject to ratification	GLENDAJOELI NDA LUPUPA CHIBWATA	PLOT NO. 12757	HILLCREST	RESIDENTIAL HIGHCOST	K13,000.00
14	SILUMESI SIYANGA	Offer subject to ratification	HUSSEIN AMED ALLY	PLOT 13382	ITAWA	RESIDENTIAL HIGHCOST	K18,000.00
15	DUNCAN MWENDAFIL UMBA	Offer subject to ratification	KAMFUTI KANYAMA	PLOT 10011451/55	MITENGO	RESIDENTIAL HIGHCOST	K13,000.00
16	CYPRIAN CHEELO	SPC/179/02/2024	MJH ENTERPRISES LTD	S/NDOLA/ZLN-197/54	KANIKI	COMMERCIAL MEDIUM COST	K30,000.00
17	MICAH CHILUFYA	SPC/179/02/24	MAESTRA INVESTMENTS LTD	S/NDOLA/ZLN-197/46	KANIKI	COMMERCIAL HIGHCOST	K60,000.00
18	BEATRICE KUNDA	SPC/179/02/24	MAESTRA INVESTMENTS LTD	S/NDOLA/Z LN-197/45	KANIKI	COMMERCIAL HIGH COST	K60,000.00
19	CHIRWA HENDRIX MASUZYO	SPC/179/02/24	MJH ENTERPRISES LTD	S/NDOLA/ZLN-1040/32	KANIKI	COMMERCIAL HIGH COST	K36,000.00
20	CHILUBA LUYANDO	SPC/197/02/24	OMILAX FREIGHT AND LOGISTICS	S/NDOLA/ZLN-1040/19	KANIKI	COMMERCIAL HIGH COST	K36,000.00
21	KAPOTA CHANSA LYNN	SPC/197/02/24	OMILAX FREIGHT AND LOGISTICS	S/NDOLA/Z LN-1040/20	KANIKI	COMMERCIAL HIGH COST	K36,000.00
22	FLORENCE BENWA	376/05/11	GIFT MULAMBO MOONGA	12503	MINSUNDU	RESIDENTIAL HIGHCOST	K13,000.00
23	MIRRIAM ZIMBA	SPC/197/02/24	MJH ENTERPRISE LTD	S/NDOLA/Z LN-197/42	KANIKI	COMMERCIAL	K36,000.00

On a proposal by Councillor Ivo Chisanga and duly seconded by Councillor Fewdays Lumbwe and it was;

RECOMMENDED:

That the applications for ratification for Change of recommendation regarding Kaniki Commercial stands and some high-cost plots in Itawa, Hillcrest, Minsundu and Mitengo be *Approved*.

LSA/167/10/2024 APPLICATION FOR ISSUANCE OF OFFER LETTERS

The Director of Legal Services reported to the Committee that the Department was in receipt of applications from applicants who had paid the requisite fees in full and were awaiting issuance of offer letters in various

areas of Ndola under Council improvement areas where Council could issue title or occupancy certificate. The Director of Legal Services recommended that the Committee considers the said applicants for issuance of offer letters in their respective areas.

Details indicating the relevant information of the applicants were tabulated hereunder:

SN	NAME	NRC	PLOT/ AREA	RECIEPT NO. NCC	AMOUNT PAID
1	DIANA MWANZA	853435/11/1	PAMODZI-2733	RCT000157859 RCT000157858	
2	FRANCIS CHAMBWE	417622/61/1	KALOKO-5006	RCT000156541 RCT000156542	
3	JOHN CHUNGU	558281/61/1	4105 KOPALANDE	NCCO006528	

A proposal was made by Councillor Fewdays Lumbwe and duly seconded by Councillor Bester Chibwe, it was;

RECOMMENDED:

That the applications for issuance of offer letters to the above stated applicants be *Approved* with inclusions of Lupili area applicants under Min No. *PIS/117/10/2022*

LSA/168/10/2024 APPLICATIONS FOR REGULARISATION OF DEVELOPED PLOTS

It was reported by the Director of Legal Services to the Committee that the Department was in receipt of the applications from applicants who had paid the requisite fees in full after site inspections were carried out by the Department of City Planning and were awaiting issuance of recommendation and/or offer letters subject to regularization. The Director of Legal Services recommended that the Committee considers the said applicants for regularization.

Details indicating the relevant information for the applicants were as tabulated hereunder:

SN	NAME OF APPLICANT	PLOT NUMBER	NRC	RECEIPT NO	AMOUNT PAID	STATUS
1.	KAPYA CHISTEL NKOLE	KANSENSHI CHIBWE CRESCENT-CB46	394711/61/1	NCC0003504 NCC0008554	13,000.00	DEVELOPED
2.	FRED LUPAMBO	KALOKO EXTENTION-5102	170163/61/1	NCCB013353 RCT 000159926 RCT 000159923	4,100.00	DEVELOPED

3.	SIN IGREDEC MANAGEMENT LIMITED	MINSUNDU-14960	172043/47/1	NCC06527 NCC06527	13,000.00	DEVELOPED
4.	YUNIKE KUNDA	NEW KALOKO (SMALL HOLDING)- 67	138143/61/1	NCCB009664		DEVELOPED
5.	JENNIFER THOMBI NYANGULU	MITENGO-13557	192239/65/1	NCCCK853089		DEVELOPED
6.	LIWANI E. AKALILWA	MUSHILI 15/948	153071/85/1	RCT000157007 RCT000157005	10,300	DEVELOPED
7.	PAMELA MWABA BWALYA	HILLCREST-82314/66	198527/12/1	CH0862232		DEVELOPED
8.	QUEEN MAFWENGA	MINSUNDU-14957	374149/67/1	NCC0024485 NCCCK047299		DEVELOPED
9.	MUKUBESA MUKUBESA	106 KANINI	228827/82/1	RCT000122978	10,300.00	FOUNDATION
10.	MARGRET NGUNI MBUZI	39 BWANA MUKUBWA	395943/52/1	MO24908 MO24907		DEVELOPED
11.	CYNTHIA MITI	13612 MITENGO	380270/61/1	NCC21937/NCC3 909		DEVELOPED
12.	MOTTON MUTAMBO	13723 MITENGO	286052/16/1	M395416 M389026	13,000	DEVELOPED
13.	MAPANDE MAPANDE	NDOLA/LN8841/384	207998/45/1	RCT000165752	25,570.00	DEVELOPED
14.	JORDAN SHIPEKESA	1240 TWAPIA GEORGE	353748/61/1	RCT000167426	4,100.00	DEVELOPED
15.	FESTUS KAPYA	L/38399/M TWAPIA GEORGE	365385/61/1	RCT000140088		PARTIALLY DEVELOPED
16.	KAYUNA DUNESIOUS	251A KABUSHI	347964/74/1	NCCCK 034617		DEVELOPED
17.	BISHARO ABDULLAH KHALIF	14448 ITAWA	606027/61/1	NCCB001872	25,570.00	DEVELOPED
18.	IDAH MWANSA	LN/85703/1	451963/67/1	RCT 00017139	18,000.00	DEVELOPED
19.	JOYCE MWALE	S/NDOLA/4004786				
20.	ISAAC KASOMO	14907 MITENGO	320999/61/1	NCCCK034216		DEVELOPED
21.	NANCY NASILELE MUSA	15652 DOLA HILL INFILL	889356/11/1	NCCM013121		DEVELOPED
22.	RONALD SIMUKANGA	15653 DOLA HILL INFILL	147281/91/1	NCCM013121		DEVELOPED
23.	DIMETRA KANGWA	182 MITENGO	221846/61/1	NCCM013197	13,000.00	DEVELOPED
24.	JAMES KAONGWA	003 LUBUTO	101893/93/1	RCT00172294		DEVELOPED
25.	ANGELA CHILINDE	004 LUBUTO	230480/42/1	RCT00172293		DEVELOPED
26.	MWAKA CHANSONGO	0030 CHIPULUKUSU	313622/61/1	RCT00172498	4,100.00	DEVELOPED
27.	JONATHAN LUNGU	NDEKE	407051/61/1	RCT000168068		DEVELOPED
28.	MARY L. MUKABILA	3027 ITAWA	153552/31/1			
29.	MULAISHO ROSON	JAC/4582	315911/68/1	RCT000171869	10,300.00	DEVELOPED
30.	ROSEMARY BWEMBYA	8/121 KANYANJE	217548/61/1	RCT000171606	10,300.00	DEVELOPED
31.	KUMASA KUMBA GERALD	3048 ITAWA	481013/61/1	RCT000151133	3100	PARTIALLY DEVELOPED
32.	CHIKUMBI CHONGO	3028 ITAWA	303942/31/1	RCT000147392	3100	PARTIALLY DEVELOPED

33.	LUKETEKELO LUKWESA	3046 ITAWA	522992/61/1	RCT000127501	3100	PARTIALLY DEVELOPED
34.	CECILLIA SAKALA	18/057 KANTOLOMBA	533826/61/1		3100	PARTIALLY DEVELOPED
35.	NTAIMO LOVENESS	3043 ITAWA	463479/61/1	RCT000154708	3,100.00	PARTIALLY DEVELOPED
36.	LONDON ABRAHAM	IT550 ITAWA	230272/64/1		3,100.00	DEVELOPED
37.	MATOLA SHAHID	3059 ITAWA	288909/63/1		3,100.00	DEVELOPED
38.	MPANDE ESTHER KATEBE	008 KABUSHI	335940/61/1	RCT000146024	4,100.00	DEVELOPED
39.	LUTANDULA JEAN	SN/NDL/ZLN/14447/1	251581/62/1	RCT000148123	36,000.00	DEVELOPED
40.	MWANSA MARY KASAWA	15794 ITAWA	317931/67/1	NCCM18326	13,000.00	PARTIALLY DEVELOPED
41.	CHILANJI S. SHINKOLO	302 KANINI	276944/61/1	RCT000098235	10,300.00	PARTIALLY DEVELOPED
42.	AGNESS CHITINDI MUSONDA	104 MITENGO	360120/11/1	NCCB025285	13,000	PARTIALLY DEVELOPED
43.	MERCY NG'AMBI	4569 KALOKO EXT	409093/61/1	RCT000156189	10,300.00	DEVELOPED
44.	MALCOM MUMPIMPILA	LN-1001428/23 MINSUNDU	757608/11/1	RCT000159405	18,000.00	DEVELOPED
45.	PETER NGULUBE	A66 LUBUTO EXT	376213/67/1	RCT000157564	4,100.00	DEVELOPED
46.	CHRISPIN MUBANGA	109 NAKAPUTA	198873/43/1	RCT000140361	21,000.00	DEVELOPED
47.	CHILESHE MUSONDA	11/081 KABUSHI EXTENSION	313210/61/1		3,100.00	PARTIALY DEVELOPED
48.	AMOS BANDA	IT 551 ITAWA			3,100.00	DEVELOPED

Upon a proposal by Councillor Fewdays Lumbwe and duly seconded by Councillor Bester Chibwe, it was;

RECOMMENDED:

That the applications for regularization from various applicants stated in the above table be *Approved*.

LSA/169/10/2024

CORRECTION OF NAMES IN COUNCIL RECORDS

The Director of Legal Services reported for the decision of the Committee that the Department was in receipt of a letter from Mr. George Mwape, who applied through the office of the Town Clerk, requesting for correction of names on his legal documents for SUB 78 Bwana M'kubwa which was previously issued under the names 'Joe Mwape' under Minute Number **LSA/69/04/23** as opposed to the details on his Green National Registration Card (NRC) indicating '**George Mwape**'.

The Director of Legal Services was seeking authority of the Committee to consider the said application for correction of names in council records.

Councillor Fewdays Lumbwe proposed and duly seconded by Councillor Bester Chibwe and it was;

RECOMMENDED:

That the application for correction of names in the Council records from Joe Mwape to George Mwape be *Approved*.

LSA/170/10/2024

CORRECTION OF NAMES IN COUNCIL RECORDS

It was reported by the Director of Legal Services for the decision of the Committee that the Department was in receipt of a letter from Mr. Derwin Lombe, who applied through the office of the Town Clerk, requesting for correction of names on his legal documents for Plot Number 17/088 Lubuto, which was previously issued under the names 'Darwin Mwape' as opposed to the details on his National Registration Card under *Minute Number LS/496/06/06*. The correction was to read **Derwin Lombe**.

On a proposal by Councillor Ivo Chisanga and duly seconded by Councillor Bester Chibwe, it was;

RECOMMENDED:

That the application for correction of names in the Council records from Darwin Mwape to Derwin Lombe be *Approved*.

At exactly 15:52, Councillor Andronicus P. Ngulube declared interest prior to the committee's consideration of item on minute number LSA/171/10/2024.

LSA/171/10/2024

APPLICATION FOR ALTERNATIVE PLOTS ON ACCOUNT OF NON-ALLOCATION

The Director of Legal Services reported to the Committee that over the years, the Council had been grappling with allocation of alternative plots to those people who were earlier allocated land by Ndola City Council but could not take possession of the said pieces of land due to encumbrances and/or court orders. The Estates section of the Legal Services Department had been updating its database from time to time and as at 26th September, 2024, the list of deserving applicants for allocation of alternative land was compiled.

The Director of Legal Services was seeking the consideration of the Committee for the allocation of alternative plots to the said applicants when land was created anywhere by the Planning Department of the Council.

The list of applicants for the said alternative plots was attached hereto as *Appendix 1*.

Upon a proposal by Councillor Francis Kazembe and duly seconded by Councillor Fewdays Lumbwe, it was;

RECOMMENDED:

- i. That the application for alternative plots on account of non-allocation of land by the Council be *Allocated* anywhere when land was created by the Council.
- ii. That the attached list as *Appendix 1* be considered with amendments.

LSA/172/10/2024 APPLICATION FOR ALTERNATIVE PLOTS FOR ALLOCATEES OF PLOTS AT KAFUBU EAST DAM

It was reported by the Director of Legal Services for the decision of the Committee that following the resolution of the Council vide Minute Number *PIS/LS/04/06/2020* to create and allocate plots in Kafubu East Dam of Ndola, Council approval was accordingly done and people issued with offer letters. However, the department had received numerous complaints from the people who were approved for the said land as the Council had either not shown them the allocated land or those already shown had failed to enjoy quiet possession owing to other people claiming ownership of the land. Several attempts to engage the people posing these challenges had proved futile and no tangible solution had been reached hitherto.

Furthermore, most of these affected people had been threatening to sue Ndola City Council for failure to allocate them the plots despite them having paid the Local Authority in full. The Director of Legal Services recommended that alternative land be found for the people who had been affected by non-allocation in Kafubu East Dam.

The list of the people who were approved for the land and given offer letters in Kafubu East Dam was attached hereto as *Appendix 2*.

After deliberations on the report, Councillor Francis Kazembe proposed and duly seconded by Councillor Ivo Chisanga, wherein it was;

RECOMMENDED:

That the application for alternative plots for allocatees of plots at Kafubu East Dam be *Considered* when land was created anywhere by the Council.

**LSA/173/10/2024 RECOMMENDATION FOR ALTERNATIVE PLOTS TO STANDS
NUMBER LN-1004539/1 AND LN-1004539/2 AND ONE OTHER
TITLED TO SEMHAR INVESTMENTS LIMITED.**

The Director of Legal Services reported for the decision of the Committee that the Department was in receipt of a memorandum from the Director of City planning with regard to the status of the above-mentioned stands belonging to **SEM HAR INVESTMENTS LIMITED**. There was a recommendation from the office of the Permanent Secretary to the effect that a combined team of provincial as well as Ndola City Council planners went on the ground to ascertain the suitability of the said stands and the findings were that the stands were not suitable for the proposed development and there was public outcry in that regard hence the recommendation for alternative plots since the Company complied with all legal requirements for acquiring those pieces of land. Arising from the foregoing, the Director of Legal Services recommended that SEMHAR INVESTMENTS be allocated 3 alternative pieces of land.

Upon having deliberated on the matter, a proposal by Councillor Fewdays Lumbwe which was duly seconded by Councillor Bester Chibwe, it was;

RECOMMENDED:

That the recommendation for allocation of three (3) alternative plots to SEMHAR INVESTMENT LIMITED be *Rejected*.

**LSA/174/10/2024 APPLICATION FOR REGULARISATION OF KANIKI
SMALLHOLDING SETTLERS**

It was reported by the Director of Legal Services for the decision of the Committee that the Department was in receipt of an application dated 10th September 2024, through the office of the Town Clerk, from Kaniki Smallholding Settlers to had their lots regularized by the Council. According to that letter, the settlers had been in occupation of those properties from time immemorial and they wished to have security of tenure and obtain approval of ownership. Additionally, they also highlighted that some of the properties like **L/KANIKI/603, 642, 555, 620, 696** and many others were already on Title at Ministry of Lands. They purport that the area was already planned and well-numbered as far back as 2008. In support of their application, the settlers also attached copies of supporting documents such as a copy of an offer letter from Ndola City Council, copies of survey diagrams for some of the properties, proof of payment for Lot Number

L/KANIKI/696, a copy of the Invitation to Treat as well as a list of the settlers for the said Kaniki Area. The Director of legal Services recommended to the Committee that the said settlers be regularized according to the list and plot numbers submitted in their letter.

The list of the settlers, together with the documents mentioned above, was attached hereto as *Appendix 3*

Upon a proposal by Councillor Andronicus P Ngulube and duly seconded by Councillor Ivo Chisanga, it was;

RECOMMENDED:

That the item be *deferred* to allow management avail to the Committee a layout plan and plot numbers allocated to each settler.

LSA/175/10/2024 LITIGATION STATUS REPORT

The Director of Legal Services reported for the information of the Committee on the current litigation status of the Council. The table below showed the litigation report for both active and concluded court matters and their outcome.

NO	PARTIES	PARTICULARS OF CLAIM	CURRENT STATUS
1.	LAWRENCE MUCHELENJE V MAUREEN KAYENGA + ANOTHER – 2023/HN/406	An application to Join Ndola City Council was made	Awaiting Judgment
2.	AMOS CAPHAS MUSHOLIWA VS NCC – 2023/HN/407	The Plaintiff claims: (i) An Order that the Plaintiff was the lawful and bornafide owner of Plot No. 13205 (ii) An Order for eviction of the 1 st Defendant from Plot No. 13205 Kabushi Ndola (iii) Damages for trespass (iv) Costs	Date of hearing yet to be set
3.	CHRISTOPHER MWANSA CHOLA AND 67 OTHERS VS NCC -	The Plaintiffs herein were claiming; i. A declaration that the action of the Defendants of burying dead bodies on the Plaintiffs' land and declaring it as a cemetery was illegal for contravening the Local Government Act,	Parties were exploring an ex-curia settlement and the Consent

	2023/HN/092	Public Health Act and the rules of natural Justice. ii. A declaration that Plaintiffs were equitable and legal owners of subdivision No. 1 to 68 of Stand No. 6102 Kawama of Ndola. iii. Punitive damages for nuisance. iv. An injunction restraining the Defendant and its agents from interfering with quiet possession of Stand No. 6102 and its Subdivisions v. Costs vi. Any other relief the Court may deem fit.	Judgment is at draft level
4.	IDAHA BWEUPE VS NCC + ANOTHER – 2023/HN/368	The Plaintiff was claiming: i. A Court Order granting a right of way over the 1st Defendants property ii. An Order compelling the Defendants to remove any obstructions or impediments that hinder the Plaintiffs access to the public road iii. An Order for the restoration of the road reserve to its original intended purpose, ensuring the Plaintiffs legal entitlement of the right of way and preserving its practical utility iv. Costs of and incidental to the action; and v. Any other appropriate relief that the Court deem just and fair.	Date of hearing yet to be set
5.	MARK MUNSANJE VS NCC + ANOTHER – 2023/HN/383	The Plaintiff's claim: i. An Order to declare the Defendants as trespassers ii. An Order to declare the plaintiff the rightful owner of the said piece of land iii. An Order of Injunction to stop the Defendants, their agents, servants and whosoever acting on the Defendants behalf from interfering with the Plaintiffs and the Plaintiffs members enjoyment of land, peace and quiet atmosphere of worship, interfering with any documentation belonging to the Plaintiff on the said piece of land iv. Any other relief the Court may deem fit and v. Costs of incidental to these proceedings	We had complied with all requirements for trial and awaiting the Notice of Hearing for trial
6.	BIBIAN KASHINA & 3 OTHERS VS THE ATTORNEY GENERAL, NDOLA CITY COUNCIL & 4	The plaintiff is claiming, inter alia i. An Order and declaration that the Plaintiff are the lawful owners of Stands No. LN/89517/94, LN/89517/95, LN/89517/99 and LN/89517/100	We had been negotiating to be removed from the proceedings on the grounds

	OTHERS – 2023/HN/199		that the Plaintiff had failed to show a clear cause of action against Ndola City Council.
7.	ALI ELMI ABDI VS ARTHUR CHANDE & NDOLA CITY COUNCIL – 2023/HN/064	The plaintiff is claiming, inter alia i. A Declaration or Order that the Plaintiff is the legal owner of Stand no. 14416 Ndola ii. An Order for an injunction restraining the 1 st Defendant and his defendant, agents or whoever from carrying out any activity on stand no. 14416 Ndola iii. An Order for Damages for trespass from the Defendants iv. Interest v. Costs	Trial had been concluded and awaiting Judgment
8.	CARNOT TRADING LTD VS HAMDI INVESTMENT & TRADING LTD + 2 OTHERS	The matter involves plot numbers S/NDOLA/4018601 and 8980 Ndola. Both the Plaintiff and the 1 st Defendant were claiming the same piece of land but had documents of ownership for Stand No's S/NDOLA/4018601 and 8980 respectively.	Awaiting Judgement
9.	FRIDAY MATAFWALI V NCC + OTHERS – 2024/SSN/83	The Plaintiff claims: a) A declaration Order that the Plaintiff was the bona fide owner of farm No. 512 Kaloko 'B' Farming area b) Order to compensate the Plaintiff as understated: (i) 1 st Defendant K350, 000.00 (ii) 2 nd Defendant K250, 000.00 (iii) 3 rd Defendant K250, 000.00 c) Order to the 1 st and 3 ^{ed} defendant to retrieve offer letter issued to the illegal occupants d) Order to the 2 nd Defendants to disconnect or isolate service cables to some houses of illegal occupants. e) Damages for trespass to the Plaintiffs' parcel of land. f) Cost and incidental to the proceedings.	Date of hearing yet to be set
10.	KOTATI NKANDU VS NCC – 2022/HN/286	That was a matter in which the Plaintiffs were claiming an Order for declaration that the plots in question, situated in Dola Hill, were properly offered to them; an Order for Injunction; an Order	Date of hearing yet to be set

		that the Defendant should not redemarcate the plots or renumber them; General Damages; Interest on any amount found due; and Costs of these proceedings. The plots under review were ranging from 14705-14706; 14646-14678 Ndola.	
11.	MOST INVESTMENTS LTD VS NCC AND ANOTHER - 2023/HN/015	That was a judicial review matter in which the applicant was contesting Ndola City Councils decision not to grant them planning permission for stand No. NDOLA/LN83758/17.	Coming up on the 31st October, 2024 at 08:30hrs
12.	ELIZABETH NVURA ZYALULA VS SAM BWALI, & OTHERS – 2023/HN/326	The Plaintiff claims: (i) A declaration that the Plaintiff was the rightful owner of Plot No. 6515C Pamodzi, Ndola (ii) A declaration that the Defendants were trespassers and illegal developers on Plot No. 6515C, Pamodzi, Ndola (iii) An Order of demolition of illegal structures erected by the Defendants on Plot No. 6515C, Pamodzi, Ndola (iv) An Order for Defendants to yield vacant possession of plot No. 6515C, Pamodzi, Ndola (v) An Order of Injunction restraining the Defendants by themselves, their workers or agents or whosoever from continuing with the trespassing and illegal development on the land and interfering with the Plaintiffs quiet possession and use of Plot No. 6515C, Pamodzi, Ndola (vi) costs	Trial concluded and we were awaiting Judgement
13.	GREEN SIAME V ALICK CHALWE & OTHERS – 2023/HN/251	The Plaintiff claims: (i) An Order declaring that Lot No. 10130/M Muchinka extension, Ndola was duly allocated to the plaintiff and that he is the Legal and Bonafide owner. (ii) An Order for cancellation of the 1 st Defendants Certificate of Title (iii) Damages for mental distress caused by the actions of the Defendants (iv) Interests (v) Costs (vi) Any other reliefs the Court deem fit.	Requested for ‘further and better particulars’ in accordance with Order 18 Rule 12(3) and (6) of the rules of the Supreme Court Rules

14.	KENNETH LWINGA VS NDOLA CITY COUNCIL- 2022/HN/361	The Plaintiffs Claims: (i) A declaration that plot No. 002 Minsundu was properly and legally offered to him (ii) A declaration and an order that the said plot having been offered to the Plaintiff he was legally entitled to possession thereof and to its quiet enjoyment. (iii) An order that the Defendant should rebuild the Plaintiff's house and put up a roof thereon as the Plaintiff had built it or in the alternative that the Defendant pays all the expenses incurred when the house was built. (iv) An order that the Plaintiff be paid damages for the inconvenience, embarrassment and harassing he has suffered (v) Reimbursement of all rentals the Plaintiff has paid from 1st January 2020 when he was supposed to move into his own house to date at the rate of K30,000.00 per month. (vi) Interest thereon at the current Bank lending rate (vii) Any other relief the court may deem fit (viii) Costs of these proceeding.	Date of hearing yet to be set
15.	LAWRENCE CHAMA VS SATO NGOSA, BRYAN SYAKULUBA, ATTORNEY GENERAL AND NDOLA CITY COUNCIL- 2022/HN/317	The Plaintiff herein took out Court process claiming i. A declaration that the Plaintiff was the legal owner of Plot No. DH 39/218 Ndola; ii. Damages for trespass by the 1st and 2nd Defendants iii. Any other relief the Court may deem fit to award in the circumstances iv. Costs of and incidental to these proceedings	• Active • Awaiting next date of hearing
16.	VINCENT KASANDA MPOMWA VS EDDY MUKADI KABANGE AND 2 OTHERS – 2022/HN/073	The Plaintiff Claims: i. A declaration and/or an order directing that the Plaintiff is the rightful owner of plot no. 14420(IT69) in Itawa Ndola ii. A declaration that the commissioner of lands could not at law offer the land namely 14420ItawaNdola to the 1st Defendant that the land has already been offered to the Plaintiff iii. An Order directing the commissioner of lands to cancel the certificate of title number 90052 relating to plot 14420 Itawa Ndola irregularly/fraudulently	NCC was joined at a later stage of the proceedings and yet to enter appearance. Other pleadings have not yet been served on us so as to enable us effectively seek instructions.

		iv. An Order that the 1 st Defendant immediately demolishes the wall erected on the boundary of plot 14420 Itawa v. An Order of injunction against the 1 st Defendant vi. Costs Further or other relief the court may deem fit	
17.	JOE KASAMA VS NDOLA CITY COUNCIL & OTHERS- 2022/HN/137	The Plaintiffs Claims: (i) An Order of demolition against the 1 st and 3 rd Defendants of the boundary wall built on the Road Reserve which is gazetted as a Public Estate Road under the Public Roads Act and serves as access road to their properties known as Plots No. 5330 and 5327, respectively. (ii) An order of injunction restraining the Defendants from continuing with the construction of boundary wall on the road reserve (ii) An order against the 2 nd Defendant to revoke its approval to the 1 st Defendant to construct a boundary on the Road Reserve (iii) An Order against the 2 nd Defendant to honour the road as a public road gazetted under the Public Roads Act and its approval as access road to the Plaintiff's properties (iv) An order of revocation of the boundary wall for violating Sections 9, 15, 18 and 21 violating Act No. 12 of 2002 and the urban and Regional Planning Act No. 3 of 2015 (v) Costs	• Active • Awaiting Order for leave to appeal and stay execution of Judgment
18.	MARTHA NKONDE CHOTA VERSUS MOSES CHILUBA, COMMISSIONER OF LANDS, NDOLA CITY COUNCIL, AND ATTORNEY GENERAL- 2022/HP/1517	The Plaintiff claims: (i) A declaration that Stand No. 9987 Mitengo Ndola belongs to the Plaintiff. (ii) An order to conceal Certificate of Title for having been obtained by fraud and deceit. (iii) An order to reinstate the Plaintiff on the subject property (iv) An order for damages for misfeasance by public officials being the 2 nd , 3 rd , and 4 th Defendants for allocating land already allocated to the Plaintiff. (v) An order of injunction to restrain the 1 st and 3 rd Defendants whether by themselves, servants or	Active

		agents from evicting the Plaintiff from Stand No. 9987 Mitengo Ndola and allowing the 1st and 3rd Defendants form starting constructions and authorising constructions respectively. (vi) Interest on the assessed damages. (vii) Costs of the suit (viii) Any other relief this Honourable Court will deem fit.	
19.	PAUL MUBANGA KONGOLO VERSUS MWASHI GODFREY SHAMAINDA AND NDOLA CITY COUNCIL- 2022/HN/290	The Plaintiff claims: (i) A declaration that the Plaintiff is the legal and rightful owner of stand Number 9380 Ndola (ii) An order of injunction restraining the Defendants form interfering with the Plaintiffs piece of land. (iii) Costs (iv) Any other relief the court may deem fit	Date of hearing yet to be set
20.	LAT/34/2023 WILLIAM SASOKOLOKE VS MINISTRY OF AGRICULTURE, ATTORNEY GENERAL AND NDOLA CITY COUNCIL-	The Plaintiff is claiming the following: i. A declaration the Complainant was entitled to legalisation of Property 15781 Kafubu Settlement Ndola Scheme;	Date of hearing yet to be set
21.	ANDREW CHISANGA AND OTHERS VS PHESTO N MUSONDA, NDOLA CITY COUNCIL AND ATTORNEY GENERAL 2023/HN/150	Land dispute between the title holder of the land on which the Defendant were allocated small holding.	Active
22.	2023/SSN/486 JOSEPH MULENGA VS NCC AND OTHERS	Matter involved properties situated at Curios market, Ndola	Active
23.	PAMELA CHISHIMBA VS BERNADETTE	We had since been joined to the proceedings but yet to be served with pleading	Date of hearing yet to be set

	CHIKONDE KAMPALALA AND NDOLA CITY COUNCIL – 2023/HN/202		
24.	MISELO KAZEMBE vs MICHAEL KAZADI, THE ATTORNEY GENERAL 2022/HN/97	The matter involved property No. 15377 and 15388 Mitengo	We had been joined to the proceedings
25.	2023/SSN/410 JACKSON JIPUPA VS NDOLA CITY COUNCIL	The matter involved the seizure of 20 bags of mealie meal allegedly worth K5, 000.00	Date of hearing yet to be set
26.	2023/SSN/455 KABUSHI PENTECOSTAL HOLINESS CHURCH VS NDOLA CITY COUNCIL	The matter involved an I.S.H tower allegedly sitting in the Churches premises	Date of hearing yet to be set
27.	2023/HN/451 BEAUTY MAKOSELO VS NCC	Matter involved property no. 2796 Mushili	The Court Ordered discontinuous of the matter as there was another matter to which Ndola City Council will be joined
28.	2023/SSN/454 GODFREY CHITONGE VS NDOLA CITY COUNCIL	The matter involved the closure of the plaintiffs’ bar for operating against the Liquor Licensing(permitted Hours) Regulations of 2012	Date of hearing yet to be set
29.	2023/HN/91 MWAKA EMILY MUSHOTA VS NCC OTHERS	Matter involved property No. LN/89517/98	NCC was negotiating to be mis joined as there was no clear cause of action against the institution

30.	2023/HP/1761 ALBERT PHIRI VS NCC AND OTHERS	The matter involved property No. LN/1000001577/482 Dola Hill	Active
31.	2024/HK/103 CHEMBO SAKENI AND CHRISTINA KATENDE MUKONKELA VS EVE NGOMA, MS. MARTHA AND NDOLA CITY COUNCIL	The claim was for: (i) An order of Injunction restraining the 1 st , 2 nd and 3 rd Defendants from trespassing, interfering and encroaching upon the 2 nd Plaintiff's Stand No. 15490 Ndola. (ii) A declaration and an Order that the 1 st Plaintiff is the legitimate holder of certificate of title No. 113660 and Stand No. 15490 Ndola, (iii) An Order that the 1 st Plaintiff legally sold stand No. 15490 Ndola, to the 2 nd Plaintiff and as such the property/Ownership and the rights in the said land/Plot passed to the 2 nd Plaintiff. (iv) An Order that the 2 nd Plaintiff was the current Owner of Stand No. 15490 Ndola. (v) A declaration that the 1 st and 2 nd trespassed on the 2 nd plaintiff land, being stand No. 15490 Ndola (vi) An Order for damages for trespass. Any other relief the Court may deem fit.	Matter had been referred to mediation and would be coming up for hearing on
32.	2024/SSN/80 LINAH CHIPILINGU VS NDOLA CITY COUNCIL	The claim was for: ZMW36, 133.50 being money owed for supply of face masks and interests	Date of hearing yet to be set
33.	2024/SSN/87 STEBRA DISTRIBUTORS LTD VS NDOLA CITY COUNCIL	The claim was for: ZMW569, 133.5 being a debt in respect of the monies of the supply of goods to NCC	Date of hearing yet to be set
34.	2024/SSN/86 LYAPE INVESTMENTS LTD VS NDOLA CITY COUNCIL	The claim was for: ZMW43, 000.00 being a debt in respect of the monies for supply of goods	Date of hearing yet to be set
35.	2023/SSN/404 MARTIN SIAME VS NDOLA CITY COUNCIL	The Plaintiff claims: (i) An Order to replace the diff which was valued at ZMW 30, 000.00 (ii) Interests and Costs (iii) Any other relief the Court may deem fit	Date of hearing yet to be set

36.	2023/HN/528 SAMUEL KALABA & ANOTHER VS NDOLA CITY COUNCIL & ANOTHER	The claim is for: i. A Declaration that the Plaintiffs were the rightful owner of property No. NDOLA/LN 1000001577/179 Dola Hill, Ndola District of the Copperbelt Province of the Republic of Zambia ii. An Order that the 1 st and 2 nd Defendant withdraw the comments and instructions that they had issued on the said piece of land that prevented the 1 st and 2 nd Defendant from carrying out their instructions and process of the 1 st Plaintiff assigning the said land to the 2 nd Plaintiff iii. Damages for mental distress caused by the actions of the 1 st and 2 nd Defendants through themselves, servants or agents iv. Any other reliefs the Court deems fit to give; and v. Costs	Matter was referred to mediation and is coming up on 1st October, 2024
37.	FRED CHANDA KAPESA AND NDOLA CITY COUNCIL- 2022/HN/208	That was an application for judicial review of the decision by Ndola City Council to revoke the planning permission for construction of commercial shops on Plot No. 115 Pamodzi	Date of hearing yet to be set
38.	2024/HK/131 DEOL LIMITED VS NDOLA CITY COUNCIL	The claim was for: vi. An order for a refund and immediate payment of USD50, 000.00 vii. An Order for a refund and immediate payment of K335, 000.00 viii. An Order for a refund and immediate payment of K53, 000.00 ix. An Order for the immediate payment of K18, 000.00 x. An Order for Specific Performance xi. Damages for breach of contract xii. Damages for inconvenience xiii. Damages for loss of use of land xiv. An Order for attachment of Property xv. Interest on the above sum or any sum found due and owing; xvi. Any Other reliefs/s the Court may deem fit xvii. Costs of and incidental to the proceedings	Date of hearing yet to be set
39.	2024/HN/136	The claim is for:	Date of hearing yet to be set

	HONEST MUYUPI AND BERTHA CHANDA AND NDOLA CITY COUNCIL	i. An order that creation of an access road on the plaintiff's property was a trespass ii. An Order that the creation of the said road access road in (i) was illegal and unlawful. iii. An Order for an injunction iv. Costs v. Interests on (iv) above	
40.	2024/SSN/83 FRIDAY M. MATAFWALI VS NDOLA CITY COUNCIL AND 3 OTHERS	The claim is for: vi. A Declaration that the Plaintiff was the eligible owner of Farm No. 512 Kaloko B' farming Area vii. An Order to compensate the Plaintiff as understated (i) 1st Defendant K120, 000 (ii) 2nd Defendant K120, 000 (iii) 3rd Defendant K120, 000 (iv) 4th Defendant K45,000	Date of hearing yet to be set
41.	2024/HN/197 PONE MUSUKU T/A VARIETY AUTO- LINK VS NDOLA CITY COUNCIL	Matter involves the supply and delivery of Tipper Trucks	Date of hearing yet to be set
42.	2024/SSN/311- FRIDAY MATAFWALI MUSONDA VS NDOLA CITY COUNCIL.	The Plaintiffs Claims: (i) Costs (ii) Any Relief the Court may deem fit.	
43.	2024/HN/438- JANE NACHINGA VS NDOLA CITY COUNCIL	The Plaintiffs Claim: (i) An Order that the Plaintiff is the legal and lawful owner of Plot No. 230 Main Masala, Ndola; (ii) A further order of ex-parte injunction order to restrain the Defendant, its agents and/or servants from interfering with the Plaintiff's quiet enjoyment of the property known as Stand No. 230, Main Masala, Ndola. Costs of and incidental to these proceedings	
44.	2021/HN/033 VIOLET CHANGWE VS NDOLA CITY COUNCIL AND FREDRICK MUSONDA	The Plaintiffs Claim: (i) An Order that the Plaintiff was the legal and lawful owner of Plot No. DH 2013 Ndola; (ii) An Order that the Defendants withdraw of plot no. DH 2013 Ndola from the Plaintiff was illegal and unlawful	The matter was coming up for trial on 8th October, 2024

		(iii) An Order of interlocutory injunction to restrain the Defendants, its agents and or its servants and any third party whatsoever from interfering with the Plaintiffs quiet enjoyment of plot no. DH 2013 Ndola until further Order of the Court; and (iv) Costs	
45.	2024/HK/296 BINWELL MUKATUKA VS JUSTINE LIKUKA AND NDOLA CITY COUNCIL	The Plaintiffs Claim: (i) An Order that the Plaintiff was the legal owner of Stand No. NDO/10413 Ndola. (ii) An Order that the Defendant built structures on the Plaintiff's land at its own risk. (iii) An Order to evict and demolish the Defendant's structure built on the Plaintiff's land illegally (iv) An Order that the 2nd Defendants' regularization under minute no. PIS/102/10/2022 was irregular and illegal as the Plaintiff's land on title. (v) An Order for payment of ZMW 50, 000.00 for loss of business opportunity occasioned by the Defendants act. (vi) Damages for trespass of land (vii) An injunction to restrain the Defendants whether by themselves, agents or servants or otherwise from interfering with the plaintiff's quiet possession and enjoyment of the property (viii) Interests on the amount found due and costs; and (ix) Any other relief the Court may deem fit and equitable.	The matter was active and we are awaiting a date of hearing to be given by the court
46	2024/HP/0940	1. Specific Performance of Subdivision "H" of Plot No. 1346, Ndola, which the Plaintiff purchased from the 1st Defendant 2. An Order that the Honourable Minister of Local Government and Rural Development considers and determines the Plaintiff's application for change of use or re-zoning of subdivision "H" of Plot No. 1346, Ndola Any other relief the Court deem fit and just	Ndola City Council had since been joined to the proceedings due to the Plaintiff and Defendants both had Claims against the Institution.
	2023/HN/0163	The claim was for: (vii) Payment of K 230, 000.00	

	HELLEN BWALYA VS NDOLA CITY COUNCIL AND 2 OTHERS	(viii) Interests at commercial bank rate (ix) Costs of the Action. Any other reliefs the Court may deem fit	
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CONCLUDED COURT MATTERS

NO	PARTIES	PARTICULARS OF CLAIM	CURRENT STATUS/ COMMENT
1.	DAVID MABUMBA VS HARRY MWANSA & NDOLA CITY COUNCIL – 2022/HN/03	The Plaintiffs were seeking the following reliefs: i. A Declaration Order that the Plaintiff was the lawful and legal owner of Stand No. LN8841/614 Ndola ii. An Order for the Defendant to vacate Stand No. LN8841/614 Ndola and demolition of all structures put on stand No. LN8841/614 Ndola. iii. An Order for an injunction restraining the Defendant by himself or and his servant's or agents' relatives from encroaching, developing, erecting or doing any act on the Plaintiffs' land Stand No. Ndola LN8841/614 iv. Costs; and v. Any Other reliefs the Court may grant.	The matter had since been concluded via a Mediation on the following terms: (i) Plaintiff to retain Plot No. LN8841/614 Dola Hill, Ndola (ii) First Defendant to be allocated an Alternative plot by 2nd Defendant within 90 days (iii) The First Defendant shall not be charged any (iv) land fees in respect of the alternative plot to be offered by the 2nd Defendant
2.	DUNCAN ZULU VS NCC – 2022/HN/503	The Plaintiff claims: i. An order and declaration and order that the Plaintiff is entitled to be recommended to the Commissioner of Lands for offer of Plot No's LN/1002683/56 and LN/8841/401 Dola Hill, Ndola.	The matter was concluded via a mediation settlement order on the following terms: i. The Defendant shall allocate to the Plaintiff Three (3) alternatives High-Cost plots in a prime area as agreed by the

		ii. Alternatively, an Order for the Defendant to allocate the Plaintiff alternative plots of similar size in a prime area as Dola Hill, Ndola. iii. An Order for payment of special damages in the sum of ZMW 57,750.00 iv. An Order for damages for inconvenience and mental distress. v. An Order for interest on all amounts found due vi. An Order for legal costs incidental to these proceedings.	ii. parties on or before 31st October, 2023. That the Plaintiff had been awarded legal costs and the same must be paid by the Defendant on or before 17th August, 2023. iii. That the said monies mentioned in clause (ii) above should be deposited to the bank account details provided. iv. In default, the Plaintiff shall be at liberty to execute without leave of Court v. The above constitutes a FULL and FINAL settlement of this matter Ndola City Council was yet to fulfil its obligations under the Mediation Settlement Order.
3.	TAONGA BANDA (SUING AS ADMINISTRATOR OF THE ESTATE OF THE LATE ELINA NYANGU BANDA) VS NDOLA CITY COUNCIL- HPIR/0051/2023	The Complainant was seeking the following reliefs: (i) An order that the Respondent is indebted to the Complainant in the sum of ZMK 273,000.00 on account of unpaid long service bonus due to Mrs Elina Nyangu Banda.	The matter was settled via Consent Order where the Defendant was to pay: i. K273, 000.00 - as Judgment Sum; ii. K41, 062.62 – as interests iii. K60, 00.00 – as Legal costs

		(ii) An Order to compel the Respondent to immediately settle the total amount owing. (iii) Interest, Costs and any other relief the Court may deem fit	Ndola City Council was yet to fulfil its obligations in full.
4.	DUNCAN ZULU VS NCC – 2022/HN/503	The Plaintiff claims: vii. An order and declaration and order that the Plaintiff was entitled to be recommended to the Commissioner of Lands for offer of Plot No's LN/1002683/56 and LN/8841/401 Dola Hill, Ndola. viii. Alternatively, an Order for the Defendant to allocate the Plaintiff alternative plots of similar size in a prime area as Dola Hill, Ndola. ix. An Order for payment of special damages in the sum of ZMW 57,750.00 x. An Order for damages for inconvenience and mental distress. xi. An Order for interest on all amounts found due xii. An Order for legal costs incidental to these proceedings.	The matter was concluded via a mediation settlement order on the following terms: vi. The Defendant shall allocate to the Plaintiff Three (3) alternatives High-Cost plots in a prime area as agreed by the parties on or before 31st October, 2023. vii. That the Plaintiff had been awarded legal costs and the same must be paid by the Defendant on or before 17th August, 2023. viii. That the said monies mentioned in clause (ii) above should be deposited to the bank account details provided. ix. In default, the Plaintiff should be at liberty to execute without leave of Court x. The above constitutes a

			FULL and FINAL settlement of this matter Ndola City Council was yet to fulfil its obligations under the Mediation Settlement Order.
5.	FELICIA PHIRI (SUING AS ADMINISTRATRIX IBN THE ESTATE OF THE LATE MICHAEL CHANDA) VERSUS BRONSON CHISOMPE AND NDOLA CITY COUNCIL-2022/HN/414	The Plaintiff claims: (i) A declaration that the Plaintiff is the legal owner of Plot No. 13141 Kabushi Extension in Ndola (ii) An order for possession of Plot No. 13141 Kabushi Extension in Ndola (iii) Any other relief the Court may deem fit and just. (iv) Costs	Matter had since been dismissed for lack of progress
6.	DAVIE KAUSU & ALFRED TEMBO V NDOLA CITY COUNCIL	The Plaintiff Claims: (i) Payment of Full terminal benefits (ii) Interests (iii) Damages	The Institution was yet to meet its obligation.
7.	SHALOM MONDE MULILO VS MULENGA KAFWENA 2022/HN/234	That was a matter in which the plaintiff was claiming unpaid rentals and an order to evict the Defendant from a shop situated within Mulungushi Bus Station. NCC was not yet a party but there was an application before Court to join the Local Authority to the proceedings.	Matter had since been concluded. Ndola City Council was not a party but gave their position.
8.	LUANGWA VIEW LIMITED VS ELLINGTON CHIPOKA AND NDOLA CITY COUNCIL- 2022/HN/369	The Plaintiff claims: (i) A declaration that the Plaintiff was the legal owner of Plots LN-8841/624 and LN/8841/625. (ii) A declaration that the erection of a car wash, septic tank and soak away	Matter was concluded at mediation as follows: • The party that was operating the car wash was told to vacate.

		by the 1st Defendant in front of the Plaintiffs premises were an obstruction to the Plaintiff's access to its premises. (iii) A declaration that the erection of a car wash, septic tank and soak away by the 1st Defendant in front of the Plaintiffs premises were an infringement of the Plaintiff's right to quiet enjoyment of its premises. (iv) A declaration that the 2nd Defendant's decision to allow the 1st Defendant to undertake a commercial activity in a residential area right in front of the Plaintiff's properties without following laid down procedures and consulting the Plaintiff was illegal (v) An injunction restraining the 1st Defendant, his servants or agents from continuing operations of the car wash which are an interference of the Plaintiff's right of access and quiet enjoyment of Plots LN/8841/624 and LN/8841/625. (vi) Costs Any other and/or further reliefs the Court shall deem fit.	• No costs were awarded to any party.
9.	2022/HN/456 WELLINGTON SANKALIMBA VS UNKNOWN OCCUPANTS AND NCC	Matter involves Stand No. 254 Chifubu Ndola	• Matter dismissed for lack of progress
10.	2021/HK/68 ABRAHAM SIMWANZA AND MASALA FISH	Matter involves property No. 228, 229 and 230 Masala	• Concluded

	CENTRE GENERAL DEALERS' LTD VS NDOLA CITY COUNCIL		
11.	ELIGRA GENERAL TRADING LIMITED VERSUS NDOLA CITY COUNCIL- 2022/SSN/120	This matter was commenced by way of Default Writ of Summons claiming ZMW 94,990.00 being payment for supplied goods to Ndola City Council	Matter was resolved via a Consent Order and the amount owed had since been paid. However, the Lawyers pegged their legal costs at K12, 000.00 and the same was yet to be paid.
12.	FRED CHANDA KAPESA AND NDOLA CITY COUNCIL- 2022/HN/208	That was an application for judicial review of the decision by Ndola City Council to revoke the planning permission for construction of commercial shops on Plot No. 115 Pamodzi	Concluded in favour of Ndola City Council and we had since written to the Applicant demanding K20, 000.00 as costs.
13.	2023/SSN/96 MWENGE DIMINGO PHIRI VS NDOLA CITY COUNCIL	Matter involved payment of accrued leave days owed to the plaintiff	Matter was settled via Consent Order dated 8th may, 2023 All obligations by the Defendant fulfilled
14.	LEONARD BWALYA VS NCC + OTHERS – 2022/HN/340	The Plaintiff claims: (i) A declaration or Order directing that the Plaintiff is the rightful owner of Plot No. 3456 Mushili and or in the alternative damages as compensation for the plot (ii) An Order directing the Commissioner of Lands to cancel the Certificate of title (iii) Damages for mental distress caused by the actions of the defendants (iv) Interests (v) Any other reliefs the Court deem fit (vi) Costs	Matter was struck out from the active cause list. However, there was an application to restore the matter to the active cause list.
15.	2023/HN/111 ALLAN LWENDO HANZUKI AND TEDDY	Ndola City Council was joined to the proceedings and cited as the 2 nd interested party. We were yet to be served with the pleadings.	Matter Concluded via Notice of Discontinuance

	MWEETWA, AG AND NCC (2 nd Interested Party)		
16.	PRECIOUS MACHIPISHA & NDASHE MACHIPISHA VERSUS PRECIOUS NAMAUNDU & NDOLA CITY COUNCIL- 2022/HN/378	The Plaintiffs claim: (i) A declaration that they were the legal owners both in laws and equity of Stand No. 11314 Ndola (ii) An injunction restraining the Defendants from interfering in quiet possession of Stand No. 11314 Ndola. (iii) An order for demolition of all illegal structures to Stand No. 11314 Ndola (iv) An order of remediation of the land to its original state by Defendant (iv) Costs	• Concluded via Consent Order.... • To follow up on a Consent Order with Senior Counsel Kayuni. • An alternative had already been allocated to the Plaintiffs.
17.	CHARLES MWANZA VS UNITED CHURCH OF ZAMBIA & NCC- 2016/HN/152 (APP-C/NO. CAZ/08/276/2022	The Plaintiff was claiming: i. Order declaring the Plaintiff as the legal owner of Plot No. 5627 Mushili. ii. Damages for mental distress caused by the action of the 1st Defendant. iii. An Order restraining the 1st Defendant from interfering with the Plaintiff's quiet enjoyment of the land. iv. Interests and Costs. v. Any other relief.	Our application to have the matter Dismissed for want of prosecution was successful and Costs were awarded to the institution
18.	GIVEN KASEBA AND 42 OTHERS VS NDOLA CITY COUNCIL COMP/NO IRC/ND/98/2022	That was an employment matter were the Plaintiffs, who were employed by the Institution, were claiming that they were under paid.	The matter was settled via Consent Order and the Institution was yet to meet its obligation
19.	KHAMA KALUWA & 604 OTHERS VS NDOLA CITY COUNCIL- 2020/HN/310	That was a matter in which the Plaintiffs sued Ndola City Council claiming <i>inter alia</i> that they were owners of plots in the Chibolele area. Ndola City Council contended that the area was duly planned by the Local Authority, advertised to members of the public and allocated plots to deserving applicants including alternative plots.	Judgment in this matter was rendered by the Court on 25th August, 2024 in favour of Ndola City Council and we were awarded costs. We had since written to the Plaintiffs' Counsel demanding costs.

20.	CORNELIUS MWABA KOLALA VS NDOLA CITY COUNCIL- 2024/HN/061	The Plaintiff's claim was for: i. An order stopping the Defendant from executing its notice on the Plaintiff ii. An Order for a joint inspection of the site to ascertain where land is within the 20 meters parameter iii. An Order to legalise the land by the Defendant iv. An Order compelling the Defendant to give the Plaintiff an alternative piece of land Any other relief the Court may deem fit.	Judgment in this matter was rendered in our favour by the Court on 25th August, 2024 and Ndola City Council was awarded costs. We had since written to the Plaintiff demanding costs.
21.	SOFYA INVESTMENTS + ANOTHER VS NCC - 2023/HN/378	In the matter the Plaintiff was claiming (i) Damages for trespass (ii) A declaratory Order that the 1st Plaintiff is a Bonafede purchaser for value without notice of lot No. 38403/M Twapia (iii) A declaration Order that Lot No. 38403/M Twapia belongs to the Plaintiffs, its heir and successor in title (iv) Punitive damages and statutory damages	Judgment had been rendered in favour of Ndola City Council and costs had been awarded. We had since written to the Plaintiff's Counsel demanding costs.
22.	VICTOR KATONGO VS NCC + OTHERS - 2023/HN/133	The Plaintiff was claiming: i. A declaration that the Plaintiff is the lawful and bonafide offeree of stand No. LN/74908/112 DOLA HILL ii. An Order for the cancellation of the 1st Defendants Certificate of Title which was issued irregularly and fraudulently iii. An Injunction restraining the 1st Defendant from selling, hinderance and or interance with the Plaintiffs peaceful	Matter had been concluded and awaiting Judgment

		and quite enjoyment of the aforementioned property iv. An Order directing the Ministry of lands to process the certificate of title in favour of the plaintiff v. Damages for mental distress and anguish caused by the actions of the 1st and 3rd Defendants vi. Costs for and incidental to this action Any further relief the Court may deem fit.	
23.	PETER CHILESHE VS NCC – 2023/HP/047	The Plaintiff is claiming: i. An order for specific performance of the sale and delivery of vacant possession of Stand No. 12273 Minsundu, Ndola; ii. Alternatively, another plot of equal size at stadium view or another location acceptable to the Plaintiff; iii. Damages for breach of sale agreement and inconvenience; iv. Interest at the prevailing current commercial bank lending rate; v. Costs Any other relief the Court may deem fit	Matter had been concluded via a Consent Judgment as follows: i. Ndola City Council to allocate the Plaintiff a 100m by 100m plot at Misaka as an alternative; ii. Ndola City Council to pay legal costs of ZMW 50,000.00 in two equal instalments Ndola City Council yet to meet its obligations.
24.	ZAMBEZI DIAMOND VS NDOLA CITY COUNCIL – 2023/HN/410	The Plaintiff's claims were for: (v) An Order that the Defendants immediately change the use of the land to Residential for property number NDOLA/LN_1000001577/167 and NDOLA/LN_1000001577/178 at Council level (vi) An Order that the Defendant replan the area	The Plaintiff discontinued the matter via the Notice of Discontinuance dated 15th July, 2024

		(vii) Damages for loss of business (viii) Interest (ix) Costs (x) Any further or other relief the Court may deem fit.	
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The Committee *Noted* the report.

LSA/176/10/2024 COURT CASES WHERE ALTERNATIVE LAND IS REQUIRED TO BE ALLOCATED.

It was reported by the Director of Legal Services for decision of the Committee that the table below showed Court matters where it was adjudged that Ndola City Council should allocate alternative pieces of land to the other parties owing to the encumbrances and/or double allocations of the land which was a subject of litigation. Furthermore, the Department had been in receipt of correspondences, through the office of the Town Clerk, where threats to institute contempt proceedings against the Town Clerk for failure to allocate alternative pieces of land to the deserving parties were issued.

The Director of Legal Services recommended that all the Court matters requiring alternative plots attached as *Appendix 4* be allocated in Misaka to fulfil the Court Judgement and avoid Contempt proceedings aforesaid.

On a proposal by Councillor Fewdays Lumbwe and duly seconded by Councillor Bester Chibwe, it was;

RECOMMENDED:

That the court cases attached at *appendix 4* which required to be allocated alternative plots be *Approved*.

LSA/177/10/2024 SUMMARY OF THE NUMBER OF TRANSACTIONS UNDER LICENSING SECTION FROM 30TH MARCH, 2024 TO 29TH JULY, 2024 AND REVENUE COLLECTED FROM BOTH GRANTS AND RENEWALS.

The Director of legal Services reported that *Schedule "B"* below showed the types of licenses and number of applications and total revenue collected for the period under review. Further, he also reported that the issuance of application forms for renewal and grants had continued for the trading period of 2024.

**SCHEDULE “B” GRANT AND RENEWAL BUSSINESS LEVY
CERTIFICATES**

S/NO	TYPE OF LICENSE	NUMBER OF APPLICATIONS	TOTAL REVENUE COLLECTED (K)
1	TRADING LICENCE	310	180,821.94
2	WHOLESALE	8	12,001
3	MANUFACTURING	3	6,000
4	LIQUOR	144	41,940.2
5	BUSSINESS PERMIT	130	21,796.47
	TOTAL		262,559.61

The Committee **Noted** the report.

**LSA/178/10/2024 SUMMARY OF REVENUE GENERATED FOR THE PERIOD 1ST
JUNE TO 31ST AUGUST 2024**

It was reported by the Director of Legal Services for the information of the Committee that during the period under review the section attended to the under listed activities and the revenue collected was One Hundred and Ninety-Seven Thousand Kwacha, Eight Hundred and Sixty-One Kwacha, One Ngwee (**K197,861.1**)

MONTH	TRANSACTION	AMOUNT
1ST- 30TH JUNE 2024	APPLICATIONS	700
“	LOCATION PLAN	1,400
“	TITLE	3,500
“	CONSENT	10,500
“	SEARCH	8,100
“	REGISTRATION	34,300
“	CHANGE OF OWNERSHIP	9,500
“	RATES/GROUNDRENT	4,405.72
“	EXPIRED LAND RECORD	3,000
“	MORTGAGES	4,000
“	OCCUPANCY LICENCES	2,100
“	NOTICES	600
“	CAVEATS	200
“	ORDER OF APPOINTMENT	500
“	DISCHARGE OF MORTGAGE	400
TOTAL	-	K83,205.72

MONTH	TRANSACTION	AMOUNT
1ST TO 31ST JULY 2024	APPLICATIONS	700
“	LOCATION PLAN	1,400
“	TITLE	3,500

“	CONSENT	6,000
“	SEARCH	5,100
“	REGISTRATION	13,760
“	CHANGE OF OWNERSHIP	5,500
“	RATES/GROUNDRENT	1,165.41
“	EXPIRED LAND RECORD	NIL
“	MORTGAGES	3,000
“	OCCUPANCY LICENCES	2,100
“	NOTICES	300
“	CAVEATS	200
“	ORDER OF APPOINTMENT	300
“	DISCHARGE OF MORTGAGE	400
TOTAL	-	K43,425.41

MONTH	TRANSACTION	AMOUNT
1ST TO 31ST AUGUST 2024	APPLICATIONS	200
“	LOCATION PLAN	600
“	TITLE	1,500
“	CONSENT	10,000
“	SEARCH	8,100
“	REGISTRATION	25,690
“	CHANGE OF OWNERSHIP	9,000
“	RATES/GROUNDRENT	6,740
“	EXPIRED LAND RECORD	NIL
“	MORTGAGES	5,000
“	OCCUPANCY LICENCES	2,100
“	NOTICES	600
“	CAVEATS	400
“	ORDER OF APPOINTMENT	300
“	DISCHARGE OF MORTGAGE	1,000
TOTAL	-	K71,230

The Committee **Noted** the report.

LSA/179/10/2024 REQUEST FROM COUNCIL EMPLOYEES TO BE CONSIDERED FOR MISAKA PLOTS

The Director of Legal Services reported for the decision of the Committee that the Department, through the office of the Town Clerk, was in receipt of a list comprising fifty-five (55) Council employees who had participated in the Advertisement of Misaka Plots in various categories but were put on the reserve list. There was an application to the effect the said 55 Council employees be considered for allocation in Misaka. Management had guided that as phase 2 of Misaka was being planned, the said applicants should be considered for allocation.

The Director of Legal Services was seeking the approval of the Committee to have the said applicants considered for allocation in Misaka aforesaid.

Appendix 5 was a list of the applicants to be considered.

Upon a proposal by Councillor Francis Kazembe and duly seconded by Councillor Andronicus P Ngulube, it was;

RECOMMENDED:

That the list of Council employees who applied to be considered for allocation of Misaka Plots be *Approved* with amendments.

REPORT OF THE DIRECTOR OF HUMAN RESOURCE AND ADMINISTRATION

LSA/180/10/2024 REPORT FOR MARRIAGES FOR THE MONTH OF AUGUST 2024

The Director of Human Resource and Administration reported for the information of the Committee that for the month of August 2024, the Marriage Office conducted a number of activities indicated in the table and raised a total amount of **K153, 300.00** for the period under review;

S/N	DESCRIPTION	FEE	NUMBER	AMOUNT
1	Appointment to solemnize marriages	250	1	250
2	Recommendation for gazzetion	200	1	200
3	Photos using civic lawn	250	13	3,250
4	Form C Ordinary	500	26	13,000
5	Form C express (Expatriate)	2000	1	2,000
5	Club registration /renewal	350	296	103,600
6	Ordinary notice of marriage Zambian	500	28	14,000
7	Ordinary notice of marriage Expatriate	1000	2	2,000
8	Express/weekend marriage certificate Zambian	1000	14	14,000
9	Special license	250	4	1,000
			GRAND TOTAL	K153,300.00

The Committee **Noted** the report.

LSA/181/10/2024 PROPOSAL TO REVISE CHARGES FOR GAZZETION

It was reported by the Director of Human Resource and Administration to the Committee that the Department of Human Resource and Administration

under Marriages section had made a proposal to revise gazzetion fees in order to enhance service delivery and maximize revenue collection. The proposed new charge and additional service provision was as follows:

S/N	DESCRIPTION	OLD RATE	CURRENT SERVICES	PROPOSED NEW RATE	PROPOSED SERVICES
1.	Appointment to solemnize marriages	250	-Certificate of appointment	500	-Certificate of appointment -Marriage Act (combo package)
2.	Marriage Act	-	-	150	Marriage Act (single pack)

Note: That the Council currently had in stock Marriage Acts which were procured some years back and had never been utilised.

Councillor Andronicus P. Ngulube proposed and duly seconded by Councillor Fewdays Lumbwe wherein, it was;

RECOMMENDED:

That the proposal to revise charges for Gazzetion fees under Marriage Section stated in the table above be *Approved*.

LSA/182/10/2024

OPERATIONAL ACTIVITIES UNDERTAKEN BY THE POLICE SECTION DURING THE PERIOD UNDER REVIEW.

The Director of Human Resource and Administration reported for the information of the Committee that during the period 1st August 2024 to 25th September 2024, the following activities were undertaken by the Council Police Section.

The activities were anti-street vending pursuant to the Anti - Nuisance Act of 2018. The operations were mainly to dissuade illegal vendors from trading in undesignated places. On 7th September, 2024 a joint operation with the State Police was conducted in the CBD and outlying areas of Ndola District.

On Monday 23rd and Wednesday 25th September 2024 Council Police carried out a joint contravening operation with Bus Drivers and their Chairman in accordance with the Bus Station and Markets Act of 2008. Seventeen (17) contravening buses were impounded and penalized at a fee of **K750.00** each. The total amount raised was **K12, 750.00** at the Hospital bus stop which was a legal bus station, 30 buses were issued with receipts amounting to K300.00 under serial numbers 1201171 to 1201200.

The total amount raised in the contravening operation was **K13, 050.00**.

In order to intensify the operations at Kapalala market, the Department of Human Resource and Administration in collaboration with Housing and Social Services requested the State Police to enforce the marketers to move into the market shelter.

The marketers had cooperated and had since moved into the market shelter. The Council Police and State were still monitoring and keeping vigil of the market, the same had been done with Chisokone and Kansenshi market.

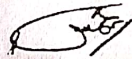
The Committee *Noted* the report.

There being no other business to transact, the meeting ended at 17:46 hours after a closing prayer by Councillor Fewdays Lumbwe

Signed in accordance with the Resolutions of the Meeting of the Legal Services and Administration Committee held on 1st October, 2024

01/10/2024

DATE



CHAIRPERSON

